

interpretation which started as an unexamined assumption on the basis of inapplicable citations and has the claim of a dogma solely through reiteration. Particularly is this so when that interpretation, only recently made, was at its inception a silent reversal of the judicial history of the Civil Rights Acts for three quarters of a century.

"The rule of *stare decisis*, though one tending to consistency and uniformity of decision, is not inflexible." *Hertz v. Woodman*, 218 U. S. 205, 212. It is true, of course, that the reason for the rule is more compelling in cases involving inferior law, law capable of change by Congress, than in constitutional cases, where this Court—although even in such cases a wise consciousness of the limitations of individual vision has impelled it always to give great weight to prior decisions—nevertheless bears the ultimate obligation for the development of the law as institutions develop. See, *e. g.*, *Smith v. Allwright*, 321 U. S. 649. But the Court has not always declined to re-examine cases whose outcome Congress might have changed. See Mr. Justice Brandeis, dissenting, in *Burnet v. Coronado Oil & Gas Co.*, 285 U. S. 393, 406-407, n. 1. Decisions involving statutory construction, even decisions which Congress has persuasively declined to overrule, have been overruled here. See *Girouard v. United States*, 328 U. S. 61, overruling *United States v. Schwimmer*, 279 U. S. 644, *United States v. Macintosh*, 283 U. S. 605, and *United States v. Bland*, 283 U. S. 636; see also *Commissioner v. Estate of Church*, 335 U. S. 632, overruling *May v. Heiner*, 281 U. S. 238.

And with regard to the Civil Rights Acts there are reasons of particular urgency which authorize the Court—indeed, which make it the Court's responsibility—to reappraise in the hitherto skimpily considered context of R. S. § 1979 what was decided in *Classic*, *Screws* and *Williams*. This is not an area of commercial law in which, presumably, individuals may have arranged their affairs in